

SHANE HUGHES CONSTRUCTION, INC. VS. BUSH

CASE NUMBER: 23CV-0203722

Tentative Ruling on Motion to Restore Status Quo Ante: Plaintiff Shane Hughes Construction, Inc. moves to stay the matter and return it to the status quo ante as of March 9, 2026. The motion is based on a bankruptcy filing by Defendant Amber Bush. A Notice of Stay of Proceedings (Judicial Council form CM-180) has not been filed. This is a mandatory form. Additionally, the Court has not been provided with any documents related to the bankruptcy case or the bankruptcy case number. While Plaintiff listed Exhibits 1-4 in the moving papers, no exhibits were provided. Without this information, the Court is not able to stay the matter or grant the motion. However, should proper proof be provided, the Court intends to stay the matter as of the date of the bankruptcy filing.

Plaintiff is directed to file a Notice of Stay of Proceedings with a copy of the Notice of Commencement of Case, the bankruptcy petition, or other document showing that the stay is in effect, and showing the court, case number, debtor, and petitioners. Ruling on the motion is **DEFERRED**. The Court intends to rule on the motion when the Notice of Stay of Proceedings has been filed, or on June 15, 2026, whichever is sooner. The matter will be on calendar on **Monday, June 15, 2026 at 9:00 a.m. in Department 63** for status of the case and potential bankruptcy stay. The clerk is directed to vacate the July 6, 2026 review hearing.

WILLIAMS VS. FOUNDATION PHYSICIANS MEDICAL GROUP, ET AL.

CASE NUMBER: 22CV-0201099

Tentative Ruling on Notice of Motion and Motion to Modify Designation of Record Filed by Plaintiff: Defendants, Foundation Physicians Medical Group, Inc., Dignity Health Medical Foundation, Commonspirit Health, and Bradley Walker, seek to modify the designation of record from an appendix to the clerk's transcripts regarding the appeal filed by Plaintiff, Shawni Williams. Plaintiff did not file an opposition.

CRC 8.124 governs the rule regarding the election and use of an appendix in lieu of clerk's transcripts on appeal. CRC 8.124(a)(1) specifically provides,

“Unless the superior court orders otherwise on a motion served and filed within 10 days after the notice of election is served, this rule governs if:

- (A) The appellant elects to use an appendix under this rule in the notice designating the record on appeal under rule 8.121; or
- (B) The respondent serves and files a notice in the superior court electing to use an appendix under this rule within 10 days after the appellant's notice designating the record on appeal is filed and no waiver of the fee for a clerk's transcript is granted to the appellant. If the appellant has a fee waiver, the respondent cannot elect an appendix instead of a clerk's transcript.

Plaintiff filed a Notice of Designation electing to use an appendix on April 3, 2026. The notice was served by electronic service on April 2, 2026. The present motion was filed on April 14, 2026, 12 days after the motion was served. CCP § 1010.6(a)(3) allows electronic service of a document that may be served by mail or fax and provides a two-day extension for any act or response to be made. Here, because the Notice of Designation was served by electronic service, Defendants had 12 days to file the present motion. The motion was timely filed. Plaintiff has not opposed the motion. Defendants have established good cause to support the use of the clerk's transcripts in lieu of an appendix.

The Motion is **GRANTED**. The clerk's transcript shall be provided to the Court of Appeal as record of the documents filed in the superior court pursuant to CRC 8.122. Defendants provided a proposed Order that will be executed by the Court.